



Animals (Restriction of Importation) Act 1964

1964 CHAPTER 61

An Act to restrict the importation of live animals of
certain kinds. [16th July 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The importation, save under the authority, and in accordance with the terms, of a licence granted by the Board of Trade, of a live animal of any of the kinds for the time being specified in the Schedule to this Act is hereby prohibited. Restriction of
importation
of live animals
of certain
kinds.

(2) A licence under this section may be, to any degree, general or specific, and may be modified or revoked by the Board of Trade at any time.

(3) Without prejudice to liability to a penalty which he may have incurred under the Customs and Excise Act 1952, a person who contravenes, or fails to comply with, a term of a licence granted under this section shall be guilty of an offence and liable, on summary conviction, to a fine not exceeding £25, or to a term of imprisonment not exceeding, for a first offence, one month or, for a second or subsequent offence, three months, or to both such fine and such imprisonment. 15 & 16 Geo.
6. and 1 Eliz.
2. c. 44.

(4) A person commissioned by the Commissioners of Customs and Excise may require any person possessing or having control of a live animal of any of the kinds for the time being specified in the Schedule to this Act which is being or has been imported to furnish proof that the importation of the animal is or was

not unlawful by virtue of this section; and if such proof is not furnished to the satisfaction of the said Commissioners the animal shall be liable to forfeiture under the Customs and Excise Act 1952.

(5) For the purposes of the application of this section to Northern Ireland with respect to importation, for references to the Board of Trade there shall be substituted references to the Minister of Home Affairs for Northern Ireland.

Power of
Secretary
of State
to vary
Schedule.

2.—(1) If the Secretary of State, after consulting the Advisory Committee established under the next following section, is satisfied that the scope of the foregoing section should be extended so as to include wild animals of a kind appearing to him to stand in need of conservation (other than birds), or diminished so as to exclude animals of a kind appearing to him no longer to stand in need of conservation, he may by order make the necessary modifications in the Schedule to this Act.

(2) The power conferred by the foregoing subsection on the Secretary of State shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Advisory
Committee on
Importation
of Animals.

3.—(1) There shall be established an Advisory Committee on the Importation of Animals consisting of such members as the Secretary of State may from time to time appoint.

(2) It shall be the duty of the said Committee to advise the Board of Trade, the Secretary of State or the Minister of Home Affairs for Northern Ireland upon any question which they or he may refer to the Committee in connection with the administration of this Act.

(3) Such sums, if any, as may be required to defray or contribute towards the expenses of the said Committee shall, to such amount as may be sanctioned by the Treasury, be defrayed out of moneys provided by Parliament.

Exercise of
powers of
Board of
Trade.

4. Anything authorised by this Act to be done by the Board of Trade may be done by the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board, or any person authorised in that behalf by the President.

Short title
and com-
mencement.

5.—(1) This Act may be cited as the Animals (Restriction of Importation) Act 1964.

(2) This Act shall come into operation at the expiration of six months beginning with the day on which it is passed.

SCHEDULE

KINDS OF ANIMALS THE IMPORTATION OF INDIVIDUALS WHEREOF IS RESTRICTED

Callithricidae.
Cebidae.
Cercopithecidae.
Dasyuridae.
Daubentoniidae.
Iguanidae.
Indridae.
Lemuridae.
Macropodidae.

Peramelidae.
Phalangeridae.
Phascolomidae.
Pongidae.
Rhinocerotidae.
Sphenodontidae.
Tarsiidae.
Testudinidae.